

B.P. Koirala Institute of Health Sciences Act, 1992

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V.P. Koirala Institute of Health Sciences Act, 2049

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Amending Acts

1. V.P. Koirala Institute of Health Sciences (First Amendment) Act, 2055 2055.7.11
2. Income Tax Act, 2058 2058.12.19
3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
4. Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 2075.11.19
5. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 48 of the year 2049

An Act made to provide for the V.P. Koirala Institute of Health Sciences

Preamble: Whereas, it is expedient to make legal provisions for the establishment and operation of the V.P. Koirala Institute of Health Sciences of national importance in order to prepare necessary human resources for the eternal sacred memory of the people's leader late Bishweshwar Prasad Koirala and to gradually make Nepal self-reliant in the health sector, provide quality health services to the general public, and promote higher-level studies and research related to health;

Therefore, this Act is enacted by Parliament in the twenty-first year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "V.P. Koirala Institute of Health Sciences Act, 2049".

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Institute" means the V.P. Koirala Institute of Health Sciences established pursuant to Section 3.

(b) "Council" means the Governing Council constituted pursuant to Section 7. Added by First Amendment.(b1) "Chancellor" means the Chancellor pursuant to Section 11. Added by First Amendment.(b2)

"Pro-Chancellor" means the Pro-Chancellor pursuant to Section 11A. Amended by First Amendment.(c)

"Vice-Chancellor" means the Vice-Chancellor appointed pursuant to Section 11B. Added by First

Amendment.(c1) "Dean, Registrar and Hospital Director" means the Dean, Registrar and Hospital Director appointed pursuant to Section 11C.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in this Act or in the rules made under

this Act. Chapter-2

Establishment, Objectives and Functions, Duties and Powers of the V.P. Koirala Institute of Health Sciences

3. Establishment of the V.P. Koirala Institute of Health Sciences: (1) The V.P. Koirala Institute of Health Sciences is established to gradually make Nepal self-reliant in the health sector, provide quality health services to the general public, and prepare necessary human resources to promote higher-level studies and research related to health, which shall be called "V.P. Koirala Institute of Health Sciences" in the English language.

(2) The office of the Institute shall be located in Dharan, Sunsari District. 4.

Institute to be an Autonomous Institution: (1) The Institute shall be an autonomous institution with perpetual succession. (2) There shall be a separate seal for all activities of the Institute. (3) The Institute may, like a natural person, acquire, use, sell or otherwise dispose of movable and immovable property. (4) The Institute may, like a natural person, sue and be sued in its own name. 5. Objectives of the Institute: The objectives of the Institute shall be as follows:- Amended by First Amendment.(a) To gradually make the country self-reliant in the health sector and prepare necessary skilled human resources for the development of quality health services by providing education at certificate, graduate, post-graduate and doctorate levels in medicine, nursing and other subjects of the health field to persons qualified as prescribed. (b) To provide quality health services, provide various trainings related to health, and give and receive consultation to and from other health institutions. (c) To conduct necessary research in the field of health. (d) To make provision for research and treatment of infectious and tropical diseases and establish a national-level centre of excellence in these subjects. (e) To function as one of the national resource centres for the development of human resources in the health field and the training of teachers of health sciences. 6. Functions, Duties and Powers of the Institute: The functions, duties and powers of the Institute shall be as follows:- (a) To conduct and promote study, teaching and research activities in various subjects of the health field. (b) To coordinate with domestic or foreign universities, hospitals or educational institutions to enhance the standard of the activities conducted by the Institute. (c) To establish, expand and strengthen relations with domestic and foreign universities and institutes related to health and with national and international associations and institutions, and to exchange mutual cooperation. (d) To make provision for teaching, training and research related to health for preparing competent human resources in the health field. (e) To organise and arrange workshops, conferences, etc. in subjects related to health and to make and arrange various publications related to health for fulfilling the objectives of the Institute.

Amended by First Amendment.(f) To obtain and mobilise financial, technical and other assistance from domestic and foreign persons and national and international bodies for the operation of the Institute and for health-related work in accordance with its objectives.

(g) To enhance and cause to enhance awareness among the public regarding the utility and usefulness of health services.

(h) To act as one of the advisers of the Government of Nepal in health-related policy and the development of the health sector.

(i) To provide financial and technical assistance to bodies involved in health services.

(j) To make provision for the education and training imparted by the Institute, conduct examinations, and confer graduate, post-graduate and doctorate degrees and other certificates and titles.

(k) To grant scholarships, medals and awards. Amended by First Amendment.(l) To prepare curricula and textbooks for programmes providing education at certificate, graduate, post-graduate and doctorate levels.

(m) To develop model information and research areas in prescribed districts for information dissemination and promotion of research in health services.

(n) To make necessary provisions regarding the service, terms and facilities of the office bearers, teachers and employees working in the Institute.

(o) To make appointments to various posts of the Institute as prescribed.

(p) To fix and receive academic and other service fees.

(q) To take loans against the security of the Institute's property.

(r) To invest the Institute's property.

(s) To establish an endowment fund of the Institute and operate it as prescribed.

(t) To do and cause to do other necessary work to fulfil the objectives of the Institute. Chapter-3
Formation and Functions, Duties and Powers of the Governing Council and Executive Committee

Amended by First Amendment.7.

Formation of the Governing Council: (1) There shall be formed a Governing Council consisting of the following members to perform the tasks to be done on behalf of the Institute:- (a) Pro-Chancellor ? Chairperson (b) Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (c) Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (d) Member, National Planning Commission (looking after health sector) ? Member (e) One person nominated by the Government of Nepal from among the former Vice-Chancellors of the Institute ? Member (f) Up to two persons nominated by the Government of Nepal on the recommendation of the Executive Committee from among the Vice-Chancellors of universities ? Member (g) Vice-Chancellor, Nepal Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.Academy of Science and Technology ? Member (h) Secretary, Ministry of Health and Population ? Member (i) Secretary, Ministry of Education, Science and Technology ? Member (j) Secretary, Ministry of Finance ? Member (k) Dean, Institute of Medicine (Tribhuvan University) ? Member (l) Chairperson, Nepal Health Research Council ? Member (m) Chairperson, Nepal Medical Council ? Member (n) Two persons nominated by the Government of Nepal on the recommendation of the Executive Committee from among health scientists ? Member (o) Chief, Dharan Municipality ? Member (p) Dean ? Member (q) Registrar ? Member (r) Hospital Director ? Member (s) Two persons nominated by the Pro-Chancellor on the recommendation of the Vice-Chancellor from among the teachers of the Institute ? Member (t) Up to two persons nominated by the Pro-Chancellor on the recommendation of the Executive Committee from among distinguished scholars, social workers, industrialists and businessmen ? Member (u) Vice-Chancellor ? Member-Secretary Added by Some Nepal Acts Amendment Act, 2082.(1A) Notwithstanding anything written in clause (u) of sub-section (1), in a meeting of the Council convened to discuss matters concerning disciplinary action against the Vice-Chancellor, the member pursuant to clause (q) of the same sub-section shall act as Member-Secretary, and in a meeting of the Council convened to discuss matters concerning disciplinary action against both the Vice-Chancellor and the Registrar simultaneously, the member pursuant to clause (h) of the same sub-section shall act as Member-Secretary. (2) The term of office of nominated members, other than ex-officio members among the members pursuant to sub-section (1), shall be four years. 8.

Meeting and Decision of the Council: (1) The meeting of the Council shall be held at least twice a year. (2) The meeting of the Council shall be chaired by the Chairperson of the Council, and in his/her absence, a member present at the meeting chosen from among themselves by the members present shall chair the meeting. (3) If fifty percent of the total number of members of the Council are present, it shall be deemed to constitute a quorum for the meeting. (4) The decision of the majority shall be the decision of the meeting. If a majority cannot be reached at the meeting, the Chairperson may cast a decisive vote. (5) The decision of the meeting shall be certified by the Member-Secretary of the Council. (6) The other procedures of the meeting shall be as determined by the Council itself. 9. Functions, Duties and Powers of the Council: (1) In addition to the functions mentioned elsewhere in this Act, the functions, duties and powers of the Council shall be as follows:- (a) To determine policies relating to training and research programmes to be conducted by the Institute. (b) To make rules of the Institute. (c) To approve plans and programmes of the Institute. (d) To review and evaluate the progress of the Institute's annual and programme and approve the annual budget. (e) To perform other functions as prescribed. (2) The Council may, as necessary, form committees and sub-committees to perform any of its functions under this Act. (3) The functions, duties and powers and procedures of the committee formed pursuant to sub-section (2) shall be as prescribed by the Council. 10. Formation and Functions, Duties and Powers of the Executive Committee: Amended by First Amendment.(1) There shall be an Executive Committee consisting of the following members to function as the executive body of the Institute:- (a) Vice-Chancellor ? Chairperson (b) Dean ? Member Amended by Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075.(c) Representative, Ministry of Health and Population ? Member (d) Hospital Director ? Member (e) Two persons nominated by the Pro-Chancellor on the recommendation of the Vice-Chancellor from among the departmental heads of the Institute ? Member (f) Registrar ? Member-Secretary (2) The term of office of the members pursuant to clause (e) of sub-section (1) shall be two years. (3) The other functions, duties and powers of the Executive Committee shall be as prescribed. Chapter-4 Provisions relating to Service, Terms of the Office Bearers, Teachers and Employees of the Institute Added by First Amendment.11.

Chancellor: (1) The Prime Minister shall be the Chancellor of the Institute. (2) The Chancellor shall preside over the convocation ceremony of the Institute. Added by First Amendment.11A. Pro-Chancellor: The Minister or Minister of State for Health shall be the Pro-Chancellor of the Institute. Added by First Amendment.11B. Appointment of Vice-Chancellor: (1) A committee consisting of the Pro-Chancellor as Chairperson and two other members shall be formed by the Chancellor to submit recommendations for appointment to the post of Vice-Chancellor of the Institute, and the Vice-Chancellor shall be appointed by the Chancellor on the recommendation of that committee. (2) The Vice-Chancellor shall be the full-time executive head of the Institute. (3) The term of office of the Vice-Chancellor shall be five years, and his/her term may be renewed. (4) The functions, duties and powers of the Vice-Chancellor shall be as prescribed. (5) The remuneration, terms of service and other facilities of the Vice-Chancellor shall be as prescribed. Added by First Amendment.11C. Appointment of Dean, Registrar and Hospital Director: (1) The Pro-Chancellor shall appoint the Dean, Registrar and Hospital Director of the Institute on the recommendation of the Vice-Chancellor. (2) The term of office of the Dean, Registrar and Hospital Director shall be five years. (3) The functions, duties and powers of the Dean, Registrar and Hospital Director shall be as prescribed. (4) The remuneration, terms of service and other facilities of the Dean, Registrar and Hospital Director shall be as prescribed. Added by First Amendment.11D.

May be Removed from Office: (1) If one-fourth of the members then holding office in the Council submit a written application to the Chancellor stating that the Vice-Chancellor, Dean, Registrar or Hospital Director of the Institute has not fulfilled the duties according to his/her office, the Chancellor shall form an investigation

committee consisting of the Pro-Chancellor as Chairperson and two members of the Council. (2) The investigation committee formed pursuant to sub-section (1) shall conduct the necessary investigation in that regard and submit its report to the Council. (3) If the report submitted pursuant to sub-section (2) states that the Vice-Chancellor, Dean, Registrar or Hospital Director has not fulfilled the duties according to his/her office, and when a resolution is passed by a majority of the total number of members of the Council at a discussion in the Council on that matter stating that he/she is to be removed from office for not fulfilling the duties according to his/her office and is submitted to the Chancellor, the Chancellor shall remove him/her from office. (4) When conducting an investigation pursuant to sub-section (2), the investigation committee formed pursuant to sub-section (1) shall give him/her a reasonable opportunity to submit his/her defence. Amended by First Amendment.

12. Provisions relating to Appointment, Terms of Service and Remuneration of Teachers and Employees of the Institute: (1) The appointment, terms of service and remuneration of the teachers and employees of the Institute shall be as prescribed. (2) All teachers and employees appointed pursuant to sub-section (1) shall be non-practising. Explanation: For the purpose of this sub-section, "non-practising" means not being allowed to engage in any medical practice, teaching (private tuition) or any other kind of private business elsewhere, whether with or without remuneration, except the official work of the Institute. 13. Repealed by First Amendment

Chapter-5 Fund, Accounts and Audit of the Institute

14. Fund of the Institute: (1) There shall be a separate fund of the Institute. (2) The fund pursuant to sub-section (1) shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received as loan, donation, assistance, grant or charitable contribution from any person, institution or government, (c) Amount received from academic fees and service fees, (d) Amount received from any other source. (3) While receiving amounts from a foreign person, institution, government or international organisation, the Institute shall obtain approval from the Government of Nepal. (4) The amount of the Institute's fund shall be deposited by opening an account in a bank. (5) All expenses of the Institute shall be borne from the fund pursuant to sub-section (2). (6) The operation of the Institute's fund and account shall be as prescribed. 15.

Accounts and Audit: (1) The accounts of the income and expenditure of the Institute shall be kept Amended by First Amendment.as prescribed. (2) The audit of the Institute shall be conducted by the Office of the Auditor General Added by First Amendment.or by an auditor appointed by that Office. Chapter-6 Miscellaneous

16. Certificates to be Provided by the Institute: Notwithstanding anything written in the prevailing law, the Institute may confer graduate, post-graduate, doctorate and other certificates and titles related to health under this Act. 17. Recognition of Certificates Provided by the Institute: The recognition of graduate, post-graduate, doctorate and other certificates and titles related to health conferred by the Institute under this Act shall be as per the Nepal Medical Council Act, 2020. 18. Annual Report: The annual report of the Institute shall be submitted by the Vice-Chancellor Amended by First Amendment.to the Council within three months of the end of the fiscal year. Added by First Amendment.

19. Delegation of Powers: The Institute may delegate some of the powers conferred upon it under this Act or the rules made under this Act to any member of the Council. 20. To Act in Conformity with the National Health and Education Policy of the Government of Nepal: It shall be the duty of the Institute to conduct its activities in conformity with the national health and education policy of the Government of Nepal. Added by First Amendment.

20A. Government of Nepal may Give Necessary Directions: The Government of Nepal may give necessary directions to the Institute. 21. Exemptions and Facilities to the Institute: The following matters shall be exempt from customs, sales tax Repealed by Income Tax Act, 2048 and other such taxes to the Institute:- (a) On construction materials and machinery equipment imported from abroad for the construction and operation of the Institute. (b) On scholarships, fellowships and awards provided by the Institute. (c) On donations, charitable contributions, grants and other sources of income received by the Institute and on the property of

the Institute. (d) On the registration of any instrument required to be registered. 22. Liaison Ministry: The Institute shall, when liaising with the Government of Nepal, do so through the Amended by Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075. Ministry of Health and Population. 23. Power to Make Rules: The Council may make necessary rules to implement the objectives of this Act.